

Amendment No. 1 to HB1495

Terry
Signature of Sponsor

AMEND Senate Bill No. 1581

House Bill No. 1495*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 71-2-402(c)(2), is amended by deleting the subdivision and substituting:

(2) As used in this subsection (c), "limited respite care services program" means a program with a sole purpose to provide primary caregivers of appropriate adults with relief from normal caregiving duties and responsibilities and:

(A) Is operated by a religious institution or religious organization that provides custodial care for aging adults and adults with limitations on activities of daily living:

(i) Who can function in a group setting;

(ii) Who can feed and perform toilet functions without the assistance of a personal aide accompanying them; and

(iii) Who attend no more than three (3) days each calendar week, no more than sixteen (16) hours in any one (1) week, and no more than six (6) hours in any one (1) day;

(B) Is registered with the department pursuant to rules promulgated by the commissioner for purposes of this subsection (c);

(C) Maintains records that include, at a minimum, dates and times of each adult's attendance;

(D) Provides care services for fewer than twenty (20) adults at the same time;

(E) Does not administer medications to adults while under the program's care; and

(F) Maintains at least the same direct-care staff-to-participant ratio required for licensed adult day services centers by rules promulgated pursuant to § 71-2-412 and enforced as licensing rules under § 71-2-409(c)(1).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.